Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1098
Claimant:	Martin Bennett
Adjuster:	Darin Tyler

04/07/2023 - Claim opened following a side impact collision at a signalized intersection. Insured vehicle was struck on the driver side by a third-party vehicle that entered on a red signal, per the initial statement. Police report requested. Claimant reports concussion symptoms and has retained counsel, who has requested that all further contact be routed through their office.

04/08/2023 - Spoke with claimant's attorney's office to confirm representation and acknowledge the claim. Counsel stated that medical records and a treatment summary will be forwarded once available. Liability appears clear on preliminary review, but coverage and damages remain udner evaluation. Reserve set pending records.

04/17/2023 - Reviewed photos of both vehicles. Driver-side door inrtusion and deployed side curtain airbag on the claimant's vehicle are noted. Third-party vehicle shows front-end damage consistent with the reported angle of impact. Vehicle inspection scheduled with the appraiser and a copy sent to counsel.

04/24/2023 - Received intake records from the treating provider through claimant's counsel. Diagnosis listed as concussion with post-concussive headaches and dizziness. Neurology referral noted. Medical file flagged for nurse review. No furtehr contact with claimant directly, per counsel's request.

05/01/2023 - Claim reviewed with supervisor. Liability position confirmed as favorable to the insured based on the police report and witness statement. Demand package expected from counsel. Will follow up on the outstanding treatment records and schedule a reserve review once the medical summary is received.

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Recorded Statement

Claim number:	C-1098
Statement of:	Martin Bennett
Taken by:	Darin Tyler
Date:	04/09/2023

Q: Thank you for agreeing to give this recorded statement. Please state your full name for the record.

A: I'd rather not give my full name on a recording, but you can use the claim number.

Q: That's fine. Can you describe where you were when the collision happened?

A: I was driving through the intersection on the main road in Sugar Land, heading east. The light had been green for me as I came up to it.

Q: What happened next?

A: A vehicle came from the cross street and hit the driver's side of my car. I didn't see it coming. It was a hard impact, and my car spun partway around.

Q: Were you injured?

A: Yes. I hit my head on the side window and the airbag went off. I've had headaches ever since, and I feel foggy and sensitive to light.

Q: Did you seek medical treatment?

A: Yes, an ambulance took me to the emergency room. They told me I have a concussion and I'm supposed to rest and avoid screens as much as I can.

Q: Are you still experiencing those symptoms?

A: Yes. Some days are better than others, but I still get dizzy and have trouble concentrating at work.

Q: Did you notice whether the other driver stopped or said anything at the scene?

A: The other driver got out and apologized. They said they were looking at their phone and didn't see the light change.

Q: Is there anything else you'd like to add to your statement?

A: Only that my car is still at the repair shop, and I'm hoping the claim can be handled quickly so I can get a rental.

Q: Thank you. This concludes the statement.

A: Thank you.